AS TO THE ADMISSIBILITY OF

Application No. 29221/95
by Boris STANKOV
against Bulgaria

Application No. 29225/95
by United Macedonian
Organisation "ILINDEN"
against Bulgaria

The European Commission of Human Rights sitting in private on 29 June 1998, the following members being present:

MM S. TRECHSEL, President
J.-C. GEUS
M.P. PELLONPÄÄ
E. BUSUTTIL
G. JÖRUNDSSON
A.S. GÖZÜBÜYÜK
A. WEITZEL
J.-C. SOYER
H. DANELIUS
Mrs G.H. THUNE
MM F. MARTINEZ
C.L. ROZAKIS
Mrs J. LIDDY
MM L. LOUCAIDES
M.A. NOWICKI
I. CABRAL BARRETO
N. BRATZA
I. BÉKÉS
J. MUCHA
D. SVÁBY
G. RESS
A. PERENIC
C. BÎRSAN
P. LORENZEN
K. HERNDL
E. BIELIUNAS
E.A. ALKEMA
M. VILA AMIGÓ
Mrs M. HION
MM R. NICOLINI

Mr M. de SALVIA, Secretary to the Commission

Having regard to Article 25 of the Convention for the Protection of Human Rights and Fundamental Freedoms;

Having regard to the applications nos. 29221/95 by Boris Stankov and 29225/95 by United Macedonian Organisation "ILINDEN" and others against Bulgaria, both introduced on 29 July 1994 and registered on 10 November 1995;

Having regard to:

- the reports provided for in Rule 47 of the Rules of Procedure of the Commission;

- the observations submitted by the respondent Government on 3 February 1997 and the observations in reply submitted by the applicants on 26 November 1997; the additional observations submitted by the Government on 12 March 1998 and the applicants' reply of 8 April 1998; the additional observations submitted by the Government on 19 June 1998;

Having deliberated;

Decides as follows:

THE FACTS

The applicant in application No. 29225/95 is the United Macedonian Organisation "Ilinden" ("the applicant association"). The remaining applicant in application No. 29221/95 is Mr Boris Stankov ("the second applicant"), a Bulgarian citizen born in 1926 and residing in Petrich.

The applicants are represented by Mr Iordan Kostadinov Ivanov, a Bulgarian citizen residing in Sandanski, President of the applicant association.

A. Particular circumstances of the case

The facts of the case as submitted by the applicants may be summarised as follows.

Background of the case

The United Macedonian Organisation "Ilinden" was founded on 14 April 1990. It applied for but was refused registration. In the proceedings for registration the Blagoevgrad Regional Court (Okrazhen sad) and the Supreme Court (Varhoven sad) examined the statute of the association, its programme and other written evidence such as, inter alia, an appeal to the population of Pirin Macedonia distributed by the applicant association and the text of its public address on the occasion of the "Day of the Bulgarian Alphabet".

In their decisions of July and November 1990 and March 1991 the courts found that the applicant association's aims were directed against the unity of the nation, that it advocated national and ethnic hatred, and that it was dangerous for the territorial integrity of Bulgaria. Therefore, its registration would be contrary to Sections 3, 8 and 52 para. 3 of the Constitution of 1971, as in force at the time. Thus, according to its programme and as it transpired from its submissions to the courts, the aims of the association included inter alia the "recognition of the Macedonian minority in Bulgaria", the "political development of Macedonia" and the "united, independent Macedonian state". Moreover, the association was advocating enmity and rejection. In its appeal to the Supreme Court it had stated that "the Macedonian people would not accept Bulgarian, Greek or Serbian rule". The formal declaration, contained in the applicant association's statute, that it would not infringe the territorial integrity of Bulgaria, appeared inconsistent with the remaining material.

Following the refusal of registration the attempts of the applicant association to organise marches and meetings and other public events were prevented by the authorities.

Prohibitions against the holding of marches and meetings

In July 1994 Mr Stankov as President of the Petrich branch of the applicant association requested the mayor of Petrich to authorise a march and a meeting to be held on 31 July 1994 in commemoration of a historical event. On 13 July 1994 permission was refused by the mayor. The applicant association appealed to the Petrich District Court (Raionen sad). On 16 July 1994 the Court dismissed the appeal. The Court found that since the applicant association was banned, there were well-founded fears that the march would endanger the public order

and the rights and freedoms of others. Despite the refusal of the authorities, on 31 July 1994 some members of the applicant association (120-150 according to the applicants' assessment) attempted to approach the historical site but the police, who according the applicants were heavily armed, blocked their way.

On 10 April 1995 the applicant association requested the mayor of Sandanski to authorise a meeting to be held on 22 April 1995 at the grave of Yane Sandanski at the Rozhen Monastery in commemoration of a historical event. This was refused on 14 April 1995 as the applicant association was not duly registered by the courts. On 15 April 1995 the applicant association appealed to the Sandanski District Court stating inter alia that the Macedonian people were deprived of their right to their own cultural life and that this was a violation of international law. The Court allegedly did not examine the appeal.

The applicants submit that a group of supporters of the applicant association who went to the Rozhen Monastery on 22 April 1995 were ordered by the police to leave their cars in the nearby town of Melnik and were transported to the Monastery by local buses. There they were allowed to visit the grave, to lay a wreath and to light candles. However, they were not allowed to bring to the site the placards, banners and musical instruments which they carried and were not allowed to hold speeches at the grave. The police allegedly took away the ribbon attached to the wreath. The participants then celebrated the event, without music, in the region of the Monastery but at a certain distance from the grave.

In July 1995, as in previous years, the applicant association again requested a permission to hold a commemoration march and a meeting on 30 July 1995 at the historical site around Petrich. The reasons for the refusals of the mayor of Petrich of 14 July 1995 and of the Petrich District Court of 18 July 1995 were identical to those contained in their decisions of July 1994.

On 8 April 1997 the applicant association informed the mayor of Sandanski and the local police that they were organising a march and a meeting to be held on 20 April 1997 at the Rozhen monastery in commemoration of a historical event. On 11 April 1997 the mayor refused to grant permission. He stated that permission for the commemoration of the same historical event had been requested on 4 April 1997 by the director of the local high school. The mayor further explained that the commemoration would be organised jointly by the school and the municipality and that "every [person], individually, could come".

On 15 April 1997 the applicant association appealed to the Sandanski District Court against the mayor's refusal stating inter alia that the mayor had not allowed them, "as a separate ethnic community", to organise a march and a meeting at the tomb of their national hero.

On 17 April 1997 the President of the Sandanski District Court issued an order leaving the appeal without consideration. The order stated that the appeal had been submitted on behalf of an unregistered organisation. On 18 April 1997 the District Court's Registry prepared a form letter notifying the representative of the applicant association of the President's order. The date on which this notification reached the applicant association is disputed. The Government have submitted a copy of a document which shows that a Ms. K., the daughter-in-law of the person who was representing the applicant association, received the notification on 1 July 1997. The applicants initially stated that they had never received a response to their appeal of 15 April 1997 but later admitted that on 5 May 1997 they had learned about the order of 17 April 1997.

As the deficiencies of the appeal were not remedied within the statutory seven days' time-limit, on 5 May 1997 the President of the

Sandanski District Court ordered the return of the appeal. This order was notified to the applicant association on 13 August 1997.

The applicants claim that on 20 April 1997 the police did not allow a group of supporters of the applicant association to reach the Rozhen monastery and that two persons who have not submitted applications to the Commission were ill-treated. The applicants submit that on 20 April 1997 only 13 students and two teachers from the local high school arrived at the Rozhen monastery. They laid a wreath in the presence of the police and left two minutes later.

On 14 July 1997 Mr Stankov as President of the association's branch in Petrich requested permission for a march and a meeting at a historical site in the outskirts of Petrich to be held on 2 August 1997. On 17 July 1997 the mayor refused the request, stating that the applicant association was not "a legitimate organisation".

On 20 July 1997 the applicant association appealed to the Petrich District Court against the refusal of the mayor stating inter alia that there was no legal provision prohibiting marches and meetings organised by organisations which are not "legitimate" and that the planned public event was peaceful and did not endanger the public order.

By decision of 1 August 1997 the Petrich District Court dismissed the appeal on the merits. The Court found that the applicant association was not duly registered "in accordance with the laws of the country" and that it was not shown that the persons who were acting on behalf of the association were representing it in reality. As a result, it was unclear who was organising the event and who would be responsible for order during the march and the meeting under Sections 9 and 10 of the Law on Manifestations and Meetings. The Court concluded that the lack of clarity as regards the organisers of a public event posed a danger to public order and to the rights and freedoms of others.

The applicants submit that on 2 August 1997 the police did not allow a group of supporters of the applicant association to reach the historical site around Petrich.

B. Relevant domestic law

a) Freedom of assembly under the Constitution of July 1991:

<Translation>

Section 43

"(1) Everyone shall have the right to peaceful and unarmed assembly at meetings and manifestations.

(2) The procedure for organising and holding meetings and manifestations shall be provided for by act of Parliament.

(3) Permission shall not be required for meetings to be held indoors."

Section 44

"...

(2) Organisations whose activities are directed against the sovereignty or the territorial integrity of the country or against the unity of the nation, or aim at stirring racial, national, ethnic or religious hatred, or at violating the rights and freedoms of others, as well as organisations creating secret or para-military structures, or which seek to achieve their aims

through violence, shall be prohibited."

b) Requirements for the organisation of a meeting or a manifestation:

Law on Manifestations and Meetings of 1990

<Translation>

Section 2

"Meetings and manifestations may be organised by individuals, associations, political and other public organisations."

Section 6 para. 2

"(2) Every organiser [of] or participant [in a manifestation or a meeting] shall be responsible for damage caused through his or her fault during the [event]."

Section 8 para. 1

"Where a meeting is to be held outdoors the organisers shall notify in writing the [respective] People's Council or mayor's office not later than 48 hours before the beginning [of the meeting] and shall indicate the [name of] the organiser, the aim [of the meeting], and the place and time of the meeting."

Section 9 para. 1

" The organisers of the meeting shall take the measures necessary to ensure the order during the event."

Section 10

"(1) The meeting shall be presided over by a president.

(2) The participants shall abide by the instructions of the president concerning the preservation of [public] order ..."

c) Prohibitions on meetings and manifestations and appeals against the prohibitions:

Law on Manifestations and Meetings of 1990

<Translation>

Section 12

"(1) Where the time or the place of the meeting or manifestation, or the itinerary of the march, would create a situation endangering public order or traffic safety, the President of the Executive Committee of the People's Council, or the mayor, respectively, shall propose their modification.

(2) The President of the Executive Committee of the People's Council, or the mayor, shall be competent to prohibit the holding of a meeting, of a march or of a manifestation, where reliable information exists that:

1. it aims at the violent overturning of the Constitutional public order or is directed against the territorial integrity of the country;

2. it would endanger public order in the local community;

...

4. it would breach the rights and freedoms of others.

(3) The prohibition shall be imposed by a written reasoned act not later than 24 hours following the notification.

(4) The organiser of the meeting, march or manifestation may appeal to the Executive Committee of the People's Council against the prohibition referred to in the preceding paragraph. The Executive Committee shall decide within 24 hours.

(5) Where the Executive Committee of the People's Council has not decided within [this] time-limit, the march, meeting or manifestation may proceed.

(6) In case the appeal has been dismissed the dispute shall be referred to the respective District Court which shall decide within five days. The Court's decision shall be final."

The Law on Manifestations and Meetings was adopted in 1990, when the Constitution of 1971 was in force. Under the Constitution of 1971 the executive local state organs were the Executive Committees of the district People's Councils (Izpulnitelni komiteti na obshtinskite narodni saveti). The mayors referred to in some of the provisions of the Law on Manifestations and Meetings were representatives of the Executive Committee acting in villages and towns which were under the jurisdiction of the respective People's Council.

The 1991 Constitution abolished the Executive Committees and established the post of the mayor, elected by direct universal suffrage, as the "organ of the executive power in the municipality" (Section 139). The new municipal councils (obshtinski saveti), which consist of elected councillors, are "organ[s] of local self-government" (Section 138). Under Section 21 of the Law on Local Self-Government and Local Administration (Zakon za mestnoto samoupravlenie i mestnata administratzia) of 1991 the municipal councils adopt the local budget, determine the local taxes, decide on the management of municipal property, adopt building plans and perform other similar tasks. There is no provision envisaging a possibility for a municipal council to examine appeals against decisions of the mayor.

Under Section 27 para. 2 of the Administrative Procedure Act (Zakon za administrativnoto proizvodstvo), read in conjunction with Section 5 of the transitory provisions to this Act, the decisions of the mayors are subject to appeal to the regional governor (oblasten upravitel).

Under Section 35 para. 2 of the Administrative Procedure Act an administrative act can be appealed against to a court either after the exhaustion of the appeals to higher administrative organs, or after the expiry of the time-limits for such appeals. According to the Supreme Court's practice an appeal may be submitted directly to the courts, without exhausting the possibility of lodging appeals with the higher administrative organs (opred. No. 103 ot 20.10.1987 na V.S. III g.o.; opred. No. 68 ot 16.4.1997 po adm.d. 1260/96 na V.A.S., Biul., kn. 7-8/97, str. 32).

Section 120 para. 2 of the 1991 Constitution provides that all administrative acts, except those expressly excluded by Act of Parliament, are subject to judicial appeal.

Where a court orders that an appeal against an administrative decision shall be returned to the sender for failure to remedy a procedural omission, the court's order is subject to appeal to the higher court within a seven days' time limit (Section 45 of the Administrative Procedure Act in conjunction with Section 200 of the

Code of Civil Procedure (Grazhdansko-protzesualen kodeks).

At the relevant time a petition for review to the Supreme Administrative Court could be submitted against a judgment of a District Court pronounced in proceedings concerning an appeal against an administrative decision (Sections 225-229 of the Code of Civil Procedure, as in force until April 1998; Section 44 of the Administrative Procedure Act as in force until December 1997).

COMPLAINTS

The applicants complain under Article 11 of the Convention of the refusal of the authorities to allow the holding of marches and meetings on 31 July 1994, 22 April and 30 July 1995, and on 20 April and 2 August 1997.

PROCEEDINGS BEFORE THE COMMISSION

Mr Boris Stankov and the applicant association introduced their complaints on 29 July 1994.

On 21 October 1996 the Commission decided to join applications Nos. 299221, 29222, 29223, 29225 and 29226/95 and to communicate the complaints of UMO "Ilinden" and of Mr Boris Stankov (which formed part of applications Nos. 29221/95 and 29225/95) concerning the refusal of the authorities to allow the holding of marches and meetings on 31 July 1994 and on 22 April and 30 July 1995. The Commission declared inadmissible the remainder of the five joined applications.

The Government's written observations were submitted on 3 February 1997, after an extension of the time-limit fixed for that purpose. The applicants replied on 26 November 1997, after extensions of the time-limit.

On 7 March 1997 the Commission granted legal aid to Mr Stankov.

By letter dated 20 October 1997 the applicants submitted additional complaints concerning the events in April, July and August 1997. This letter and the enclosed material was transmitted to the Government on 13 January 1998. The Government commented on these additional complaints by letter of 12 March 1998. The applicants replied on 8 April 1998. On 23 May 1998 the Commission decided to communicate the additional complaints and to examine them jointly with the initial complaints. On 19 June 1998 the Government submitted additional observations.

THE LAW

1. The Commission notes at the outset that by its partial decision of 21 October 1996 it has declared inadmissible all complaints registered under applications nos. 29222/95, 29223/95 and 29226/95 and some of the complaints registered under applications nos. 29221/95 and 29225/95, the examination of the remainder of the latter two applications having been adjourned. The Commission takes note, therefore, that applications nos. 29222/95, 29223/95 and 29226/95 are to be considered disjoined and declared inadmissible on 21 October 1996.

2. The applicants complain under Article 11 (Art. 11) of the Convention of the refusal of the authorities to allow the holding of marches and meetings on 31 July 1994, 22 April and 30 July 1995 and on 20 April and 2 August 1997.

Article 11 (Art. 11) of the Convention, insofar as relevant,

provides as follows:

> "1. Everyone has the right to freedom of peaceful assembly and to freedom of association with others ...
>
> 2. No restrictions shall be placed on the exercise of these rights other than such as are prescribed by law and are necessary in a democratic society in the interests of national security or public safety, for the prevention of disorder or crime, for the protection of health or morals or for the protection of the rights and freedoms of others..."

a) The Government submit that the applicants have concealed certain facts in an attempt to mislead the Commission and that therefore the application must be rejected as an abuse of the right to petition. Thus, the applicants stated that they had never received a response from the District Court to their appeal of 15 April 1997, whereas in reality they had been duly informed of the decisions taken on this appeal.

The applicants have not reacted to the Government's allegation that the application was an abuse of the right to petition. They state nevertheless that it was only on 5 May 1997, well after the date of the planned commemoration, that they learned about the order of the President of the District Court of 17 April 1997.

The Commission considers that the Government's objection could only be accepted if it were clear that the application was based on untrue facts in a deliberate attempt to mislead the Commission. However, this is far from clear at this stage of the proceedings (No. 24760/94, Dec. 27.6.96, D.R. 86, p. 54; Eur. Court HR, Akdivar v. Turkey judgment of 16 September 1996, Reports of judgments and decisions 1996-IV, No. 15, pp. 1210, 1211, paras. 53 and 54).

It follows that the application cannot be regarded as an abuse of the right of petition within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention and cannot be declared inadmissible on this ground.

b) The Government dispute the locus standi of the applicant association to bring an application under Article 25 (Art. 25) of the Convention. They submit that since this organisation has been refused registration in Bulgaria, it has no standing as a legal entity under Bulgarian law and, consequently, it may not be considered to have standing before the Commission. In the Government's view the applicant association cannot be considered a "non-governmental organisation" within the meaning of Article 25 (Art. 25) of the Convention. Furthermore, the Government insist that no reference to the non-existent United Macedonian Organisation "Ilinden" should be made in the Commission's decisions. The Government do not dispute the locus standi of the second applicant, Mr Boris Stankov.

The applicant association replies that the lack of registration does not mean that it is an "illegal" association or that it does not exist. Without being registered an association has a number of rights, including the right to hold meetings. Many unregistered associations exist in Bulgaria. Also, Article 25 (Art. 25) of the Convention does not limit the right of petition to those associations which are registered. Finally, the applicant association may choose its own name and it is not for the Government to decide what name it should bear.

The Commission recalls its case-law in cases concerning non-governmental organisations which have been refused registration or have been dissolved. In such cases, where the complaints concerned inter alia the very fact of the dissolution or of the refusal of registration, the Commission did not question the applicants' locus standi as "non-governmental organisations" within the meaning of

Article 25 (Art. 25) of the Convention (cf. No. 18874/91, Dec. 12.1.94, D.R. 76, p. 44; Nos. 19392/92 and 21237/93, Dec. 6.12.94, pending before the Court; No. 23892/94, Dec. 16.10.95, D.R. 83, p. 57; No. 27608/95, Dec. 29.11.95; No. 28626/95, Dec. 3.7.97; No. 30985/96, Dec. 8.9.97). Indeed, any other solution would to a substantial degree restrict the right of non-governmental organisations to petition under Article 25 (Art. 25) of the Convention.

The Government's argument in the present case is in essence that where a non-governmental organisation has no legal standing under domestic law and where it is not open to the Commission to examine the conformity with the Convention of the decision which has led to such legal situation, the non-governmental organisation has no standing to submit a petition in respect of acts of the authorities posterior to that decision.

However, the Commission notes that in the present case the applicant association has been refused registration and has not been "dissolved", and that there is nothing to suggest that a non-registered association such as the applicant association had no right under Bulgarian law to function and to perform its activities.

Furthermore, the Commission recalls its case-law according to which the refusal of registration of an association does not amount to an interference with the association's right to freedom of assembly if the association is able to perform its activities without a registration (No. 18874/91, Dec. 12.1.94, D.R. 76, p. 44). It follows that in case the authorities seek to suppress the activities of such an association following the refusal of registration there must be a possibility for it to submit a complaint under Article 11 (Art. 11) of the Convention.

In any event, the Commission notes that in the present case the domestic authorities on several occasions received requests and appeals by the applicant association, as represented by its President or by the second applicant, and examined them on the merits, thus impliedly accepting the applicant association's locus standi to complain about the prohibition against the holding of marches and meetings. In these circumstances the Commission accepts the procedural capacity of the applicant association, as represented by its President, to bring an application to the Commission (cf., mutatis mutandis, Eur. Court HR, Catholic Church of Canea v. Greece judgment of 16 December 1997, para. 31, to be published in Reports of Judgments and Decisions 1997; No. 13712/88, Dec. 2.4.90 and No. 20966/92, Dec. 30.11.94).

It follows that the Government's objection that the applicant association has no legal standing before the Commission must be rejected and that, therefore, the application cannot be declared inadmissible under Article 27 para. 2 (Art. 27-2) of the Convention on this ground.

c) In their initial observations the Government did not raise an objection in respect of the exhaustion of all domestic remedies. However, in their additional observations, which deal with the prohibitions on marches and meetings on 20 April and 2 August 1997, the Government submit that the applicants have not complied with the rule of exhaustion of all domestic remedies.

In their additional observations of 12 March 1998, referring to Section 35 para. 2 of the Administrative Procedure Act and Section 12 para. 4 of the Law on Manifestations and Meetings, the Government stated that the acts of the mayors were subject to appeal to the respective municipal council. In their additional observations of 19 June 1998 the Government stated that under Section 27 para. 2 of the Administrative Procedure Act, read in conjunction with Section 5 of the transitory provisions to this Act, the decisions of the mayors were subject to appeal to the regional governor.

The Government also state that the applicants should not have seized the District Court before having exhausted the administrative avenue of appeal. They maintain that a judicial appeal submitted prior to the exhaustion of the administrative avenue of appeal or, alternatively, prior to the expiry of the time-limits for such appeals, is inadmissible under Bulgarian law. Thus, in the applicants' case, the district courts decided wrongly on the occasions where they examined the applicants' appeals on the merits. Also, the administrative avenue of appeal is a better remedy as it offers a possibility to challenge not only the impugned decision's lawfulness, but also the exercise of discretionary power by the administrative body.

Furthermore, the decisions of the District Courts on the merits of the applicants' appeals could be challenged before the Supreme Administrative Court by means of petitions for review (molba za pregled po reda na nadzora). The Bulgarian review proceedings have been considered by the Commission as a remedy to be exhausted for purposes of Article 26 (Art. 26) of the Convention (Nos. 24571 and 24572/94, Dec. 28.6.95, D.R. 82, p. 85; No. 24140/94, Dec. 22.2.95, unpublished). The Government acknowledge that a decision of the Supreme Administrative Court in a case such as the applicants' would not have provided a possibility to hold the prohibited meeting. However, a decision of the Supreme Administrative Court in the applicants' favour would have had jurisprudential value and would have dealt with the question whether or not the applicants' rights had been violated. Thus, the Supreme Administrative Court would have provided the remedy which the applicants now seek from the Convention organs.

The Government also state that the order of the President of the Sandanski District Court of 17 April 1997 refusing on procedural grounds to deal with the applicants' appeal was subject to appeal to the Regional Court.

The applicants reply that the 1991 Constitution abolished the Executive Committees of the People's Councils, referred to in Section 12 para. 4 of the Law on Manifestations and Meetings. It is therefore evident that the applicants could not appeal to an administrative body which did not exist. Furthermore, the Law on Administrative Procedure provides for a possibility to appeal against an administrative act directly to a court.

As regards the possibility to submit to the Supreme Administrative Court a petition for review the applicants state that this may be an effective remedy in cases concerning, for example, property disputes, but not in circumstances where, as in their case, the District Court confirmed prohibitions against meetings to be held a day or two following the court's judgment. The review proceedings before the Supreme Administrative Court normally last for a year or more. Furthermore, the review proceedings cannot lead to an award of compensation for the violation of the applicants' rights. Also, the review proceedings have never been used, as far as the applicants are informed, in cases pertaining to the application of the Law on Manifestations and Meetings.

The applicants also maintain that an appeal to the Regional Court against the orders of the President of the Sandanski District Court leaving without consideration the association's appeal of 15 April 1997 is not an effective remedy.

The Commission considers that the Government's objection concerning the exhaustion of domestic remedies, albeit raised solely in the context of their submissions about the prohibitions on marches and manifestations on 20 April and 2 August 1997, is submitted in general terms and must therefore be regarded as a general objection concerning all prohibitions complained of.

The Commission recalls that under Article 26 (Art. 26) of the Convention normal recourse should be had by an applicant to remedies which are available and sufficient to afford redress in respect of the breaches alleged. The existence of the remedies in question must be sufficiently certain not only in theory but also in practice, failing which they will lack the requisite accessibility and effectiveness.

In the area of exhaustion of domestic remedies there is a distribution of the burden of proof. It is incumbent on the Government claiming non-exhaustion to satisfy the Convention organs that the remedy was an effective one available in theory and in practice at the relevant time, that is to say, that it was accessible, was one which was capable of providing redress in respect of the applicant's complaints and offered reasonable prospects of success. However, once this burden of proof has been satisfied it falls to the applicant to establish that the remedy advanced by the Government was in fact exhausted or was for some reason inadequate and ineffective in the particular circumstances of the case or that there existed special circumstances absolving him or her from the requirement to exhaust.

It must be further emphasised that the application of the rule of exhaustion must make due allowance for the fact that it is being applied in the context of machinery for the protection of human rights that the Contracting Parties have agreed to set up. Accordingly, Article 26 (Art. 26) must be applied with some degree of flexibility and without excessive formalism (Eur. Court HR, Akdivar v. Turkey judgment, loc. cit., paras. 66 and 68).

Insofar as the Government refer to Section 12 para. 4 of the Law on Manifestations and Meetings which provides for an appeal to the Executive Committee of the People's Council, the Commission notes that no such state organ has existed in Bulgaria since 1991. The Government initially suggested that after the abolition of the Executive Committees the power to examine appeals resided with the local municipal councils. However, the Commission notes that under the relevant law the municipal councils do not act as judicial bodies and are not competent to examine appeals. The Government have not provided any example which would lead to a different conclusion.

It is true that under Section 27 para. 2 of the Administrative Procedure Act, read in conjunction with Section 5 of the transitory provisions to this Act, the decisions of the mayors are subject to appeal to the regional governor.

However, the Commission notes that contrary to the Government's assertion, the practice of the Supreme Court confirms that the Administrative Procedure Act allows an appeal to a court against an administrative act without exhaustion of the administrative avenue of appeal. Therefore, despite the existence of further possibilities for administrative appeals against the mayors' decisions, the applicants were not required to resort to them. It should be noted that on several occasions the District Courts admitted for examination the applicants' appeals against the mayors' prohibitions, without requiring the exhaustion of any administrative remedy.

Finally, it is also true that on the occasions where the District Courts examined their appeals, the applicants had the theoretical possibility to submit to the Supreme Administrative Court petitions for review. Also, the order of the President of the Sandanski District Court of 5 May 1997, which barred the examination of the case before it on procedural grounds, was apparently subject to appeal on procedural points to the Regional Court.

However, the Government have not provided any example of a petition for review relating to matters under the Law on Manifestation and Meetings having been examined by the Supreme

Administrative Court. Also, it is undisputed that had the applicants attempted the remedies suggested by the Government, the proceedings would have lasted for at least several months and any favourable outcome would have resulted long after the date of a planned meeting or manifestation. The Commission, therefore, is not persuaded that these theoretical remedies could provide adequate redress in respect of the alleged violations of the Convention.

The Commission finds, accordingly, that the Government's objections as regards the exhaustion of domestic remedies must be rejected and that, therefore, the application cannot be declared inadmissible under Article 27 para. 3 (Art. 27-3) of the Convention.

d) The Government further maintain that the application is inadmissible because the refusals of the authorities to allow the holding of marches and meetings were justified on several grounds.

Firstly, the Government state that under Section 2 of the Law on Manifestations and Meetings the organisers of such public events must be "individuals, associations, political and other public organisations", whereas the applicant association is not registered and its activities are not in conformity with Bulgarian law. This was the ground for some of the refusals. The Government submit, without relying on a particular example, that on several occasions requests to organise meetings have been granted where they had been submitted by members of the applicant association in their individual capacity.

Secondly, the Government maintain that the refusals were justified under Sections 39 and 44 of the Constitution. The Government submit a copy of a poster distributed by the applicant association which contains an invitation to the meeting planned for 31 July 1994 and depicts a schematic map where the territory of Macedonia is shown to encompass parts of the territory of Bulgaria, Greece and Albania. The Government submit a copy of a police report which states that during meetings held by the applicant association in 1990 and 1991 calls had been launched for the recognition of the Macedonian minority in Bulgaria, for cultural autonomy, as well as for independence and for greater Macedonia. The Government also submit a copy of a newspaper published in FYROM in 1997, which reports that the applicant association had announced 10 August 1998 as the date on which Pirin Macedonia would declare its independence from Bulgaria. The Government submit that these documents emanating from the applicant association openly propagate against the sovereignty and the territorial integrity of the country and spread enmity and national and ethnic hatred.

Thirdly, in the Government's view the meetings and marches posed a danger to public order and their prohibition was therefore justified under Section 12 of the Law on Manifestations and Meetings. The Government submit that the historical site in the outskirts of Petrich is a place visited by many tourists, especially on a Sunday in the summer. Therefore it was not appropriate to allow meetings to be held there. Also, as regards the marches and meetings at the Rozhen Monastery near Sandanski, the Government state that at the same place and at the same time meetings and marches were organised by the local authorities and by other non-governmental organisations. The Government further submit that the concern for the public order was not unjustified because in the past there had been clashes between supporters of the applicant association and other persons. In support of this statement the Government submit a copy of a police report which states that during a meeting held by the applicant association in 1991, tension had arisen due to the statements made at the meeting, and that a prominent politician was splashed with beer on his face.

The Government emphasize that all requests for the holding of meetings and marches were made by the applicant association, as an organisation. The Government clarify that the applicants were informed by the local authorities that if they wished to visit the historical

sites and to commemorate the historical events as individuals they could do so provided that they did not carry their slogans and posters.

The applicants reply that the position of the Government discloses the lack of clarity about the legal grounds of the prohibitions of meetings and marches organised by the applicant association. Thus, the Government now submit arguments which were not relied upon by the local authorities in their decisions refusing permission. Also, the grounds for refusing examination of the appeals on procedural grounds were changing constantly which reveals that the authorities would resort to "tricks" to avoid addressing the substantive issues. All this confusion demonstrates, in the applicants' view, that the prohibitions were a part of the consistent administrative practice of the authorities of all levels to suppress the rights of the Macedonians.

The applicants state that the lack of registration of the applicant association cannot be a valid argument for the prohibition of the meetings and marches. Thus, the Law on Manifestations and Meetings contains no requirement that a notification for a public event, and an appeal against a prohibition, must originate from a registered legal person.

The applicants submit that their gatherings have always been peaceful and that there have never been clashes with other persons. Thus, a meeting held at the Rozhen Monastery in 1990, prior to the beginning of the policy of systematic prohibitions, went without any problems. The gatherings in commemoration of historical events usually began with a speech, followed by reading of poems and then folk music and dances. The applicants submit that it has always been the police who created problems and ill-treated the demonstrators.

The applicants dismiss as frivolous the arguments that the prohibitions were necessary in view of the danger that tourists would be disturbed or because the local authorities or other organisations were holding meetings in the same places and on the same dates. They submit that on 31 July 1994, when the supporters of the applicant association were prevented from approaching the historical site near Petrich, the police had sealed off the whole area, not letting anyone pass. Therefore, there were no tourists around. Also, the police were not checking identity documents and had no means to know who was a tourist and who was a member of UMO Ilinden.

The applicants submit in respect of the commemoration on 20 April 1997, when thirteen school children came to lay a wreath, that it is unclear why two commemorations could not take place simultaneously or one shortly after the other. This would not have posed a threat to the public order. The position of the Government that any member of the applicant association could attend the commemoration "in an individual capacity" is no answer to the applicants' complaints which concern their freedom of assembly.

The applicants submit that even if the authorities had reasons to believe that the meetings and marches would meet opposition by other people, it was their duty to protect the applicant association's right to counter-demonstrate, as defined in the Court's case-law.

The applicants further argue that the demonstrations did not pose any threat to the national security and the territorial integrity of the country as the demonstrators never carried arms or threatened anyone. The applicants submit that speeches, music and dances cannot amount to attempts to forcibly change the established constitutional order or to incitement to enmity or hatred. If the demonstrators were responsible for such acts, the authorities could have brought criminal proceedings against them. However, no such proceedings have been brought.

Having examined the complaints of the applicant association and of Mr Stankov under Article 11 (Art. 11) of the Convention concerning the prohibitions against holding meetings and marches on 31 July 1994, 22 April and 30 July 1995, and on 20 April and 2 August 1997, the Commission finds that they raise serious questions of fact and law which are of such complexity that their determination should depend on an examination of the merits. This part of the applications cannot, therefore, be regarded as manifestly ill-founded within the meaning of Article 27 para. 2 (Art. 27-2) of the Convention, and no other grounds for declaring it inadmissible have been established.

For these reasons, the Commission, by a majority,

DECLARES THE REMAINDER OF THE APPLICATIONS ADMISSIBLE, without prejudging the merits.

M. de SALVIA Secretary to the Commission	S. TRECHSEL President of the Commission